

The MentorSphere

Complaints Policy

Version 2.0

Document details

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Policy owner	Luke Turner, Founder of The MentorSphere
Public website: View The MentorSphere policy directory	

Policy wording

1. Purpose

The MentorSphere aims to provide professional, transparent and responsive tutoring, coaching and educational support.

Where something has gone wrong, concerns should be taken seriously rather than dismissed or treated defensively. This policy provides a clear process for raising, investigating and responding to complaints.

The aims are to:

- Make it easy and accessible to raise a concern
- Resolve straightforward problems quickly
- Investigate formal complaints fairly
- Give clear reasons for decisions
- Offer proportionate remedies where appropriate
- Protect confidentiality
- Identify learning and service improvements
- Ensure that nobody is disadvantaged for making a complaint in good faith

2. Scope

This policy applies to complaints concerning:

- Maths, English or Science tutoring
- ADHD and executive function coaching
- Education, SEND, EHE and EOTAS support
- EHCP or referral preparation work
- Private examination and access arrangement support
- School, employer or Access to Work-funded services
- Communication and administration
- Payments, invoicing, packages, cancellation or rescheduling
- Accessibility and reasonable adjustments
- Conduct by Luke Turner, a cover tutor, contractor or temporary member of staff
- Data protection and handling of personal information
- Discrimination, harassment or unfair treatment
- The quality, accuracy or timeliness of commissioned work

Complaints may be raised by:

- A current, prospective or former client
- A learner
- A parent or guardian
- A person authorised to act for the client
- A school, employer, funder or commissioning organisation
- A contractor or other person directly affected by the service

A young person may raise a concern directly. Their age, communication needs and understanding will be considered when deciding how to handle it.

3. Principles

Complaints will be handled:

- Respectfully
- Without unnecessary defensiveness
- As quickly as reasonably possible
- On the available evidence
- With appropriate confidentiality
- Without prejudging the outcome
- In an accessible format
- In accordance with safeguarding and data protection duties

Making a complaint will not automatically result in the cancellation of services or less favourable treatment.

However, raising a complaint does not automatically cancel a booking, suspend an invoice or remove an existing payment obligation. Temporary arrangements may be agreed while a dispute is investigated.

4. What may be complained about

A complaint may concern matters including:

- The standard or suitability of a service
- Failure to provide an agreed service
- Unreasonable delays
- Poor, unclear or inappropriate communication
- An alleged failure to follow a policy or agreed term
- Payment or cancellation disputes
- The accuracy or quality of a report or document
- Unprofessional conduct
- A failure to consider an adjustment
- Discrimination, harassment or victimisation
- Privacy, confidentiality or data handling
- Safeguarding practice
- Conduct by a person working on behalf of The MentorSphere

A complaint is different from:

- A general question
- A request to change a booking
- Routine feedback
- A request to exercise a data protection right
- A disagreement with professional advice where the agreed service was nevertheless delivered appropriately

Where appropriate, The MentorSphere will clarify whether the person wishes to make a formal complaint.

5. Current terms and written agreements

Complaints concerning pricing, cancellation, package validity, attendance or commissioned work will be considered against:

- The terms published or provided when the service was agreed
- Any service-specific policy in force at that time
- The quotation, invoice or package information supplied
- Any bespoke written agreement
- Relevant written communications between the parties

Where a bespoke quotation, funded arrangement or written service agreement contains specific terms, those terms will normally take priority for that work.

No unpublished term will be retrospectively imposed on a client.

6. Matters requiring a different or urgent response

Safeguarding concerns

A safeguarding concern will not be delayed while a routine complaints process takes place.

Immediate danger: contact the emergency services on 999. The MentorSphere is not an emergency or crisis service.

Where a safeguarding allegation concerns Luke Turner or another person delivering services on behalf of The MentorSphere, the matter may be referred directly to the appropriate local authority safeguarding service, police or other relevant body. It will not be investigated solely as an ordinary customer-service complaint.

Safeguarding duties may limit the information that can be shared with the complainant.

Data protection complaints

A complaint about the use, security, accuracy, disclosure, retention or handling of personal data will also be treated as a data protection complaint.

The MentorSphere will:

- Provide a clear route for submitting the complaint
- Acknowledge it promptly and within any applicable legal timeframe
- Make appropriate enquiries without undue delay
- Keep the complainant informed
- Explain the outcome and any action taken

A data rights request, such as a request for access, correction or erasure, may be handled alongside the complaint but remains subject to its own legal requirements.

Criminal, fraudulent or threatening conduct

Allegations involving criminal conduct, fraud, serious threats or immediate risk may be reported to the police, safeguarding services, an insurer, a payment provider or another appropriate body.

7. Accessibility and support

A complaint does not have to use formal or legal language.

Complaints may be made:

- By email
- By telephone
- During a video call
- Through an agreed representative

- In another reasonable format where an adjustment is needed

The MentorSphere can assist by summarising a verbal complaint in writing and asking the complainant to confirm that it has been understood correctly.

Reasonable adjustments may include:

- Additional time
- Simplified written communication
- A telephone or video discussion
- Communication through a parent, advocate or authorised representative
- Breaking the complaint into separate issues
- Providing the response in a more accessible format

Where a person acts on behalf of an adult client, evidence of authority may be requested before confidential information is disclosed.

8. Informal resolution

Where appropriate, concerns should first be raised informally.

The person should explain:

- What happened
- When it happened
- Why they are dissatisfied
- What they believe would resolve the issue

The MentorSphere will normally respond to an informal concern within two working days.

Possible informal resolutions include:

- Clarifying what was agreed
- Correcting a misunderstanding
- Providing missing information
- Rearranging a session
- Correcting an administrative error
- Agreeing an adjustment
- Apologising
- Agreeing another practical solution

A person does not have to use the informal stage where the matter is serious, sensitive or unsuitable for informal resolution.

9. Making a formal complaint

Formal complaints should be sent to:

Luke Turner
Founder of The MentorSphere
Email: luke@thementorsphere.co.uk
Telephone: 07955 723 133

Using the subject line Formal Complaint will help ensure that the complaint is identified promptly.

Where possible, the complaint should include:

- The complainant's name and contact details
- The name of the learner or client concerned
- A clear description of the complaint
- Relevant dates

- Copies of relevant messages, invoices or documents
- Details of any attempt to resolve the matter
- The outcome being requested

Complaints should normally be raised within three months of the event or of the complainant becoming aware of it. Later complaints may still be considered where there is a reasonable explanation for the delay or where the matter is serious.

Anonymous concerns may be considered where enough information is available, although anonymity may limit the investigation and prevent a direct response.

10. Acknowledgement

A formal complaint will normally be acknowledged within two working days.

The acknowledgement will:

- Confirm receipt
- Summarise the issues where clarification is needed
- Explain the next steps
- Identify any further information required
- Provide an expected response date

Working days exclude Saturdays, Sundays and bank holidays in England.

11. Investigation

The investigation may include:

- Reviewing relevant communications and documents
- Comparing the service delivered with the agreed scope
- Checking the policies and terms that applied
- Reviewing invoices, bookings or attendance records
- Speaking with a cover tutor, contractor or relevant third party
- Asking the complainant for clarification
- Considering safeguarding, equality and data protection responsibilities
- Seeking appropriate professional or independent advice

Only information relevant to the complaint will be considered.

Where the complaint concerns Luke Turner directly, Luke remains responsible for responding because The MentorSphere is operated as a sole-trader business. The response will acknowledge this limitation transparently.

Where proportionate, independent professional advice may be sought. This does not create a separate independent adjudication or appeal service.

12. Response times

A written outcome will normally be provided within 10 working days of receiving sufficient information to investigate the complaint.

Where a complaint is complex, involves several parties or requires external information, the investigation may take up to 20 working days or longer where reasonably necessary.

Where the response cannot be completed within the original timeframe, the complainant will be told:

- Why more time is required
- What remains outstanding
- When the next update or final response is expected

13. Complaint outcome

The written response will normally include:

- A summary of the complaint
- The information considered
- Findings for each main issue
- Whether the complaint is upheld, partially upheld or not upheld
- Reasons for the decision
- Any remedy or corrective action
- Any service improvement identified
- Information about requesting a review or seeking external advice

14. Possible remedies

Where a complaint is upheld or partially upheld, a proportionate remedy may include:

- An explanation
- An apology
- Correction of inaccurate information
- Completion or revision of agreed work
- Rescheduling
- A credit or refund where appropriate
- Removal or correction of an improper charge
- A change to communication arrangements
- A reasonable adjustment
- Review of a policy, template or process
- Additional training or guidance
- Pausing or ending a service relationship

The remedy will depend on the circumstances. Making a complaint does not create an automatic entitlement to a refund or compensation.

15. Requesting a review

A complainant who believes the response contains a significant factual error, overlooked evidence or procedural failure may request a review within 10 working days of receiving the outcome.

The request should explain:

- What part of the outcome is disputed
- What evidence or issue was overlooked
- What change is being requested

The review will reconsider the identified points rather than automatically repeat the entire investigation.

A review response will normally be provided within 10 working days.

Because The MentorSphere is a sole-trader service, the review cannot be guaranteed to be independent. Where appropriate and proportionate, external professional advice may be sought.

16. External advice and escalation

A complainant may seek independent advice at any stage.

Depending on the issue, external routes may include:

- Citizens Advice Consumer Service: consumer rights, payment, contract or service-quality concerns
- Equality Advisory and Support Service: discrimination and equality concerns
- Information Commissioner's Office: data protection concerns

- Local authority safeguarding services or the police: safeguarding or safety concerns
- A relevant employer, school, funder or commissioning organisation: where that organisation commissioned or funded the service
- Mediation, legal advice or court proceedings: where a dispute cannot be resolved informally

The availability of an external route will depend on the nature of the complaint. The MentorSphere cannot guarantee that an external organisation will accept or uphold a complaint.

A person may complain to the Information Commissioner's Office about data protection without completing The MentorSphere's review stage first, although allowing the business to investigate may enable the issue to be corrected sooner.

17. Confidentiality

Complaints will be handled confidentially and shared only where necessary to:

- Investigate the issues
- Respond to the complainant
- Obtain professional advice
- Meet safeguarding or legal obligations
- Notify an insurer, funder or relevant third party
- Protect the rights or safety of another person

The response may withhold information relating to another person's privacy, confidential session content or safeguarding matters.

18. Records and retention

A complaint record may include:

- The original complaint
- The acknowledgement
- Relevant evidence and communications
- Investigation notes
- The outcome
- Actions and improvements arising from the complaint

Complaint records will normally be retained for up to six years after closure where this remains necessary for contractual, legal, insurance or accountability purposes.

Records may be retained for a different period where:

- Safeguarding requirements apply
- A legal claim or investigation is ongoing
- An insurer, commissioner or regulator requires retention
- Earlier deletion is appropriate because the information is no longer needed

Records will be reviewed and securely deleted or anonymised when there is no longer a justified reason to retain them.

19. Unreasonable or abusive conduct

The MentorSphere will remain accessible and patient, including where disability, distress or communication difficulty affects how someone engages with the process.

However, action may be taken where conduct becomes:

- Threatening or abusive
- Discriminatory
- Persistently insulting
- Excessively repetitive without new information

- Deliberately misleading
- Intended to harass or intimidate
- So frequent or demanding that it prevents reasonable investigation or service delivery

Possible steps include:

- Setting one agreed communication channel
- Setting reasonable response boundaries
- Asking for the issues to be summarised
- Communicating through an authorised representative
- Declining to respond repeatedly to matters already fully addressed
- Ending direct contact where serious abuse or threats occur
- Reporting threats or criminal behaviour

Restrictions will be proportionate, explained in writing where appropriate and will not prevent legitimate safeguarding or data protection concerns from being considered.

20. Learning and improvement

After a complaint is concluded, The MentorSphere will consider whether it identifies:

- A policy gap
- An unclear term
- A communication failure
- A training need
- An accessibility barrier
- A recurring administrative problem
- A safeguarding or data protection improvement

A complaint may lead to changes even where it is not formally upheld.

21. Policy review

This policy will be reviewed:

- At least annually
- Following a serious complaint
- Where a complaint exposes a procedural weakness
- When legal or regulatory requirements change
- When The MentorSphere's staffing or service model changes

22. Related policies

This policy should be read alongside:

- Equality, Diversity and Inclusion Policy
- Safeguarding Policy
- Privacy Policy
- SEND, SEMH and Neurodiversity Policy
- ADHD Coaching Policy
- Technical Requirements and Troubleshooting Policy
- Cover Tutor and Temporary Staff Policy
- Current pricing, booking and cancellation terms
- Accessibility Statement

23. Change log

Version 2.0, 30 July 2026: replaced the former Maths Mentor-only policy; extended the scope across The MentorSphere; updated complaint routes, accessibility arrangements, response stages, safeguarding and data protection handling, current contractual terms and external advice options.

Nothing in this policy limits a person's statutory rights or their right to seek independent advice or contact an appropriate authority.